

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1223
(Representatives Jonas, Heilman, Longmuir, Murphy, Richter, Hager)
(Senator Boschée)

AN ACT to amend and reenact section 15.1-19-09 of the North Dakota Century Code, relating to the suspension and expulsion of kindergarten through grade twelve students.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 15.1-19-09 of the North Dakota Century Code is amended and reenacted as follows:

15.1-19-09. Students - Suspension and expulsion - Rules.

1. The board of a school district shall adopt rules regarding the suspension and expulsion of a student. The rules for expulsion must provide for a procedural due process hearing ~~in the manner provided for in~~ under subsection 2 of section 15.1-19-10, before the determination to expel a student is made. A student's parent or representative must be allowed to participate in the expulsion hearing.
2. ~~A school district may suspend a student~~ may be suspended for up to ten days for insubordination, habitual indolence, disorderly conduct, or for violating a school district weapons policy.
3. ~~A school district may suspend a student who is~~ is enrolled in an alternative education program for which state per student payments are available ~~may be suspended~~ for up to twenty days for insubordination, habitual indolence, disorderly conduct, or for violating a school district weapons policy.
4. ~~A school district may expel a student, including one enrolled in an alternative education program, may be expelled from school for up to twelve months for insubordination, habitual indolence, or disorderly conduct; provided the expulsion does not last beyond the termination of the current school year. A student who violates the school district's weapons policy may be expelled for up to twelve months. The school district shall consider the severity of the infraction, the age of the student, and the disciplinary history of the student to determine the duration of the expulsion. If the student satisfies the conditions for reinstatement established by the school district, if any, the school district may review and reduce the duration of the expulsion. A student who violates the school district's weapons policy may be expelled under section 15.1-19-10.~~

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1223.

House Vote: Yeas 92 Nays 0 Absent 2

Senate Vote: Yeas 45 Nays 1 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State